



POLICE DEPARTMENT

December 2, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202305267 (Incident Date: June 7, 2023) regarding Police Officer Mia Martin, Tax No. 967988 (DADS No. 2024-32012)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202305267, pertaining to Police Officer Mia Martin. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Martin would be detrimental to the Police Department's disciplinary process.

In this matter, Police Officer Mia Martin, and her public safety team, conducted a car stop for two Vehicle and Traffic Law violations. During the stop, the driver, a sole occupant, was asked to exit the vehicle. As he exited, he was recording the interaction on his cell phone. The officers escorted him to the rear of the vehicle, and engaged him in questions regarding his failure to present his license and registration when requested. As they were questioning the individual, and as he continued to record, the supervisor on scene approached, and requested that he cease recording. When the individual failed to comply, the Sergeant removed his phone and handed it to Police Officer Martin. Police Officer Martin placed it on the trunk of the vehicle as the Sergeant continued questioning the individual.

At some point, the individual reached over and took possession of his phone. The Sergeant again instructed him that he was not to touch his phone. In response, Police Officer Martin grabbed the phone from the individual's hand and took possession of it. During this brief struggle for the phone, Police Officer Martin used profanity.

The Police Commissioner disagrees with CCRB that Police Officer Martin interfered with the individual's right to record police activity. She was merely acting on the guidance of what her Sergeant initially instructed the individual to do, which was to cease recording. It was only after the individual ignored multiple requests by the Sergeant to put the phone away that Police Officer Martin intervened. Therefore, since Police Officer Martin was carrying out the directive of the supervisor, she cannot be said to have intended to interfere with the individual's recording.

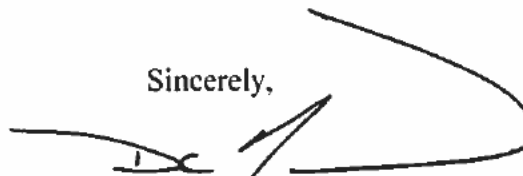
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The Police Commissioner does, however, believe that Police Officer Martin should be able to remove the phone while maintaining a courteous and professional demeanor. The situation was not chaotic or hectic where the use of profanity is sometimes reasonably used to gain compliance.

Therefore, as provided in the 2012 Memorandum of Understanding between CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice, and to retain jurisdiction over this matter, intends to impose no disciplinary action for the alleged interference with an individual's recording. Additional, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline with formalized training in Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department), for the use of profanity in this encounter.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino", with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



December 4, 2024

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202305267 (DADS No. 2024-32012)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated December 2, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against PO Mia Martin. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you analyzed the facts and circumstances of this matter and determined that to pursue Charges and Specifications against PO Martin would be detrimental to the Police Department’s disciplinary process.

The CCRB respectfully disagrees with your assessment. Deputy Chief Marino’s letter states that in telling § 87(2)(b) to put his phone away and then in taking § 87(2)(b) phone, PO Martin was simply following the example of SGT Herrera, who was also telling § 87(2)(b) to put his phone away. However, an officer is not permitted to violate the requirements of the Administrative Guide simply because they witness a superior officer also violating the Administrative Guide.

Administrative Guide 304-21 states: Individuals have a right to lawfully observe and/or record police activity including, but not limited to detentions, searches, arrests or uses of force. The right to lawfully observe and/or record police activity extends to individuals in public places, such as streets, sidewalks, and parks, as well as private property in which the individual has a legal right to be present, such as buildings, lobbies, workplaces or an individual’s own property. This right to observe and/or record police action can be limited for reasons such as the safety of officers or other members of the public, or when a violation of law is committed by the individual(s) who are observing/recording. The following guidelines should be utilized by members of the service whenever the above situation exists - DO NOT:

1. Intentionally prevent, or attempt to prevent, an individual from recording police activities,
2. Threaten, intimidate, or otherwise discourage an observer from recording police activities,
3. Command an individual to cease recording when an individual is authorized to do so under law,



ERIC L. ADAMS
MAYOR

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4. Stop, seize, search, summons, or arrest an individual solely because such individual recorded police activities,
5. Seize property or instruments used by an individual to record police activities,
6. Delete or seize recorded images of police activity from an individual's recording device, unless authorized by law, and/or
7. Copy a recording of police activity without consent of the individual who made the recording.

BWC clearly captured PO Martin independently interfering with § 87(2)(b) ability to record even though § 87(2)(b) was lawfully allowed to record this encounter. PO Martin intentionally interfered with § 87(2)(b) ability to record his police encounter and was discourteous when she used profanity that had no legitimate police purpose. Police officers are not able to interfere with a civilian's recording simply because they are being lawfully stopped or questioned. At 4:26 of PO Martin's BWC, § 87(2)(b) is attempting to record, and PO Martin states, "put the phone away," "put the fucking phone away" and "I am not going to ask you again." SGT Herrera does not instruct PO Martin to take the phone or to tell § 87(2)(b) to put the phone away. Furthermore, at 5:54 PO Martin tells § 87(2)(b) that he can record but that he has to put the phone down. However, it would have been impossible for § 87(2)(b) to record if he did not have his phone.

While the CCRB acknowledges you are the final arbiter of discipline, it respectfully disagrees with your assessment and requests that the NYPD serve Charges and Specifications upon PO Martin be served.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor for
Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

December 6, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

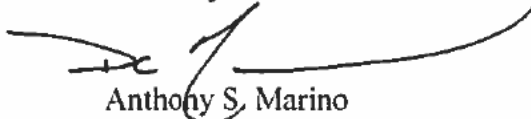
Re: CCRB Case No. 202305267 (Incident Date: June 7, 2023) regarding Police Officer Mia Martin, Tax No. 967988 (DADS No. 2024-32012)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated December 4, 2024, regarding the CCRB case involving Police Officer Mia Martin and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Martin for the reasons expressed in my December 2, 2024 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with formalized training in Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department) for the discourtesy allegation. Furthermore, no disciplinary action will be imposed for the alleged interference with an individual's recording.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

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